

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA**

**CASE NO.
DIVISION:**

IN RE MARRIAGE OF:

**SARAH HANSON,
PETITIONER,**

AND

**CHRISTOPHER HANSON,
RESPONDENT.**

PETITION FOR DISSOLUTION OF MARRIAGE WITH DEPENDENT/MINOR CHILDREN

Petitioner, SARAH HANSON, hereby petitions this Court to enter an decree dissolving the marriage between her and Respondent CHRISTOPHER HANSON, and incorporating a child-care parenting plan that provides for 50/50 custodial rights, and states:

1. On October 28, 2016, the parties were married.
2. The parties are residents of the State of Florida and have been for more than 6 months.
3. The parties' primary address is in Tampa, Hillsborough County, Florida.
4. The couple have two minor children: born 10.28.2017 and 07.10.2019.
5. Due to irreconcilable differences the parties outlined a separation agreement on October 8, 2023, which did not include financial disclosures.
6. A copy of the agreement will be filed under separate cover.
7. Pursuant to various discussions held between the parties surrounding Petitioner's departure of the primary residence, Petitioner located a property for purchase as her homestead. Petitioner acquired a loan in her name with a closing date set for November 8, 2023. The closing was moved up to November 3, 2023, albeit not

formally by addendum to the contract thereby allowing additional time before the formal closing date passed.

8. Shortly prior to the closing of November 3, 2023, Petitioner learned Respondent would be required to sign documentation addressing the homestead nature of the newly acquired property.
9. Respondent confirmed he was agreeable to signing such documentation and requested copies of the documents to review.
10. The documents for Respondent to sign were not provided to Petitioner until November 2, 2023, for review. Petitioner provided same to Respondent.
11. Part of the documentation included Mortgage paperwork that appeared to identify the Respondent as a borrower. In light of this language, clarification was sought as to the basis for the documentation and the legal requirements surrounding same.
12. After objections were raised, the documentation was adjusted to clarify to even a lay person that the Mortgage did not obligate the Respondent for the note but was required per the Florida Constitution.
13. General Counsel who specializes in mortgages also provided clarification as to the need for the spouse to sign the documentation as a legal formality in order for the mortgage on the new property to be secured.
14. Respondent is adamant in not signing off on the documentation and has therefore hindered the process to the point Petitioner cannot secure the property sought for her and her children to reside and effectuate the separation living quarters.
15. The sole reason for the property to have been lost to Petitioner is Respondent's actions as the loan had been fully funded with both the seller and buyer having signed all documents to complete the contract. The title company cannot release the funds without the signing off on the Mortgage.

16. Petitioner's homestead property, necessary for her formal separation, would have been acquired but for Respondent's steadfast refusal to sign off on the required paperwork for the loan to be secured.
17. In order for Petitioner to secure a Homestead in the State of Florida via mortgage, Respondent must either sign off on the Mortgage (not the promissory note) or the parties must be Divorced.
18. To the extent an extension on the closing may be acquired on the property already approved and mortgaged (which is at the discretion of the sellers), Petitioner seeks an emergency declaration from this Court as to her rights and Respondents rights as to the property and whether Respondent may be compelled to sign the necessary paperwork.
19. To the extent the property cannot be acquired in light of the late timing and the deadlines already in existence, Petitioner requests this Court determine the parties' respective rights as to the loss of the Wife's new homestead property to include Respondent reimbursing Petitioner for the lost escrow as a result of the inability to close, totaling \$10,000.00, as well as for all fees associated with the purchase of the property including appraisal and inspection fees.
20. Petitioner also requests Respondent be held responsible to the extent his actions have now resulted in the forfeiture of the property and the loan already approved for Petitioner. Interest rates may rise as will the monthly payment for a comparable home suitable for Petitioner and her children. To the extent similar terms cannot be secured, Petitioner requests this Court determine Respondent's responsibility and determine Respondent be responsible for any contract that results in less favorable terms are secured following a formal divorce decree.

21. Petitioner requests this Court address any and all remaining aspects of the divorce to include the current living situation as Wife cannot now move out with the children without purchasing a property unless Husband signs off on same, requests the Court address the lost homestead property of the Wife, addresses child support, if any, and enters any and all decisions declaring the parties legally divorced.

WHEREFORE, Petitioner SARAH HANSON, respectfully petitions this Court for declaration of Divorce and for the relief sought in this petition, to be amended as necessary, and for any other relief this Court deems just and proper.

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